



FRAMEWORK AGREEMENT

Seller Financing

This agreement is made between

MODIFI B.V., a limited liability company incorporated under the laws of the Netherlands with its registered seat in Amsterdam, the Netherlands, registered with the trade register of the Dutch Chamber of Commerce under number 73275905 (**MODIFI**)

and
Laj Exports Ltd

SELLER

Chandan Hulla Khasra No. 150, 110074 New Delhi, DL, IN

Registered Office (Street, No, Post code, City, Country)

Commercial Register and No.

09AAACL9688G2ZW

Company VAT ID

1. Scope of this Framework Agreement

The SELLER wishes to make use of the trade finance solutions offered on the MODIFI platform. By entering into this **Framework Agreement** and subject to the conditions laid down in this Framework Agreement including the accompanying receivables purchase terms and conditions (the **RPTC**) and any applicable Schedule or Addendum, the SELLER will be admitted as a user of the MODIFI platform.

2. Payment Terms and Fees

The SELLER offers to sell and assign Accounts Receivable to MODIFI subject to the terms of this Framework Agreement, the RPTC, any applicable Schedule or Addendum, and, in particular, to the following Payment Terms and Fees as calculated and displayed on the MODIFI Platform for each individual Account Receivable offered to MODIFI. MODIFI reserves the right to adjust the Transaction Fee, Factoring Fee and Advance Rate from time to time downwards or upwards as displayed on the Platform.

2.1 Payment Terms

The SELLER shall designate on the Platform with respect to any Account Receivable offered to MODIFI that the time between the IPP Payment Date and the applicable Due Date falls in one of the following categories (the **Payment Term**):

0	to	5	calendar days
6	to	30	calendar days
31	to	60	calendar days
61	to	90	calendar days
91	to	120	calendar days

2.2 Transaction Fee

A percentage of the face value of each purchased Account Receivable for the applicable Payment Term:

0	to	5	days	0.00 %
6	to	30	days	0.47 %
31	to	60	days	0.94 %
61	to	90	days	1.41 %
91	to	120	days	2.20 %

(the **Transaction Fee**).

2.3 Factoring Fee: 0.00 %

of the face value of each purchased Account Receivable (the **Factoring Fee**).

2.4 Advance Rate:

a percentage of the face value of the Account Receivable (as may be adjusted by MODIFI from time to time). The applicable Advance Rate will be disclosed to the Seller on the MODIFI Platform or API (as applicable).

2.5 Set-Up Fee:

to be deducted from the first Purchase Price payment(s) by MODIFI to the Seller, as further set out in the RPTC (the **Set-Up Fee**).

EUR 0.00 USD 0.00 GBP 0.00 CAD 0.00

2.6 Reference Rate:

a percentage of the face value of each purchased Account Receivable for the applicable Payment Term determined by MODIFI by reference to published interest rates. The applicable Reference Rate will be disclosed to the Seller on the MODIFI Platform or API (as applicable).

3. Agreement

The Seller accepts the RPTC and the Framework Agreement and which together with the applicable Schedules or any Addendum form the Agreement between the parties.

For and behalf of **MODIFI B.V.**

Date:
Amsterdam

Date:
Amsterdam

SELLER

Place:

Date

DocuSigned by:

NARESH ANEJA

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NEW DELHI

18 July 2024



Receivables Purchase Terms and Conditions (RPTC)

(as of 1 December 2023)

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, the following terms shall have the following meanings:

“Account Receivable” or **“Accounts Receivable”** means the right to receive any and all present and future payments of money due and payable, whether due now or payable in the future (including any entitlement to late payment interest whether by contract or implied by law) as a result of an Underlying Relationship, whether or not earned by performance. If the amount due under an Invoice is payable in instalments, each such instalment shall be treated as an individual Account Receivable.

“Addendum” means an addendum to this Agreement executed in writing by both parties.

“Advance Rate” means a percentage of the face value of the Account Receivable (as may be adjusted by MODIFI from time to time). The applicable Advance Rate will be disclosed to the Seller on the MODIFI Platform or API (as applicable).

“Advance Rate Amount” means with respect to an Account Receivable the amount due with respect to such Account Receivable multiplied by the Advance Rate.

“Adverse Claim” means any Security Interest, netting, set-off, claim, defence or counterclaim, prohibition on assignment, negative pledge, including claims related to shipment, delivery, damage, defect, performance, failure to meet specifications, or failure to meet expressed or implied warranties.

“Agreement” means the Framework Agreement including these receivables purchase terms and conditions and any applicable Schedule.

“Applicable Law” means all existing and future laws, rules, regulations, statutes, treaties, codes, ordinances, Permits, certificates, orders and licenses of and interpretations by, any governmental authority, and applicable judgments, decrees, injunctions, writs, orders or similar action of any court, administrative, judicial or quasi-judicial tribunal or agency of competent jurisdiction (including those relating to currency exchange controls, to competition, privacy issues, and the creation, perfection and priority of any company charges or other securities given by a Person of whatsoever nature or any law, rule, regulation, statute, treaty, code or ordinance having a similar purpose in any jurisdiction), to the extent that the foregoing are applicable to either or both of the parties hereto or a relevant Buyer.

“Business Day” means a day other than a Saturday, Sunday, a public holiday or other holiday in Amsterdam on which the banks in Amsterdam are open for general business.

“Buyer” means a purchaser of goods and/or services from the Seller.

“Collect” and **“Collected”** means with respect to an Account Receivable, that MODIFI has received the amount due with respect to such Account Receivable provided that an Account Receivable will not have been deemed to be Collected for the purposes of determining whether any Deferred Purchase Price should be paid until MODIFI has been able to confirm that it has received a proportion of the due amount with respect to such Account Receivable which is greater than the sum of (i) the Initial Purchase Price, (ii) the Transaction Fee with respect to such receivable, (iii) the Reference Rate with respect to such receivable; (iv) the Factoring Fee with respect to such receivable, (v) the Processing Fee(s) with respect to such receivable, and (vi) any other amounts owed by the Seller to MODIFI.

“Deferred Purchase Price” means with respect to an Account Receivable or Portfolio the higher of (i) zero; and (ii) the amount actually Collected with respect to such Account Receivable or Portfolio (as applicable) less the Initial Purchase Price paid with respect to such Account Receivable or Portfolio, any payable Fees (including Late Fees and additional costs and expenses incurred by MODIFI with respect to collection of the relevant Account Receivable or Portfolio) not yet deducted from the Initial Purchase Price and any amounts payable by the Seller to MODIFI.

“Designated Employee” means an employee of Seller who is authorised by the Seller to access and use the Platform on its behalf.

“Due Date” means, with respect to an Account Receivable, the day on which the payment of the Buyer is due according to the Invoice and/or the underlying purchase or service contract between Seller and the Buyer.

“Employees” means employees, officers, directors, shareholders, controlling Persons, agents, representatives, advisors and consultants of a party.

“Event of Insolvency” shall be deemed to have occurred with respect to any Person if:

- (a) such Person stops or suspends or threatens to stop or suspend payment or all or a material part of its debts, or is unable to pay its debts when due; or
- (b) such Person begins negotiations for, takes any proceedings concerning, proposes or makes any agreement for the deferral, rescheduling or other readjustment of its debts, or a moratorium is agreed or declared in respect of or affecting all or a material part of the debts of such Person; or
- (c) a petition is filed or presented in respect of a Person in any court or before any agency alleging or for the bankruptcy, winding-up or other insolvency of that Person, or seeking any protection of the court, re-organisation, management, composition, scheme of arrangement, re-adjustment, liquidation,



administration, administrative receivership, examinership or similar relief (other than a solvent reconstruction, amalgamation or reorganisation) under present or future statute, law or regulations applicable to such Person; or

- (d) a composition, scheme of arrangement, compromise or other similar arrangement has been approved and made binding on a Person and all of that Person's creditors; or
- (e) any step is taken to enforce security over or a distress, execution or other similar process is levied or served against the whole or a substantial part of the assets or undertaking of such Person, including the appointment of a receiver, administrative receiver, manager or similar officer to enforce that security in respect of all or any part of the property or undertaking of such Person; or
- (f) a petition is presented, order made, meeting convened, resolution passed or any step is taken by any person with a view to the winding up, business rescue or dissolution of such Person; or
- (g) receiver or manager, liquidator, trustee, administrator, or other similar official is appointed over a Buyer, whether or not the appointment has been made by a court or other similar tribunal but excluding any appointment which does not affect MODIFI's rights as a creditor of the Buyer; or
- (h) any event or circumstance occurs which under the law of any relevant jurisdiction has an analogous or equivalent effect to any of the events listed above.

"Factoring Fee" has the meaning given to it in Clause 2.3 (*Factoring Fee*) of the Framework Agreement and shall be deducted from the Initial Purchase Price.

"Fees" mean the Transaction Fee, the Reference Rate, the Factoring Fee, the Processing Fee, the Set-Up Fee and the Late Fee (if applicable).

"Foreign Public Buyer" means an entity located outside the Netherlands whose creditworthiness is equal to that of the government in the country in which it is located due to its statutory position or a commitment from such government with regard to the financial support of such entity.

"Initial Purchase Price" means, with respect to an Account Receivable, the Advance Rate Amount of that Account Receivable, less the applicable Fees.

"Intellectual Property" means patents, trade marks, service marks, rights (registered or unregistered) in any designs, applications for any of the foregoing, trade or business names, copyright (including rights in computer software) and topography rights; know-how, trade secrets, inventions, secret formulae and processes, lists of suppliers and Buyers and other proprietary knowledge and information; internet domain names; rights protecting goodwill and reputation;

database rights, moral rights and all rights and forms of protection having equivalent effect, anywhere in the world.

"Invoice" means, in respect of each Account Receivable, a copy of the relevant invoice including details of the Seller, details of the Buyer, invoice number, the amount denominated in the relevant currency, the issue date and the Due Date.

"IPP Payment Date" means the date falling up to three Business Days following acceptance of an offer by Modifi in accordance with Clause 3 (*Sale and Purchase of Accounts Receivable*).

"Late Fee" has the meaning given to it in Clause 11.3.

"Late Fee Start Date" means:

- (a) if the Due Date falls five days or more before the last day of the applicable Payment Term, the first day immediately following the Payment Term; and
- (b) if the Due Date falls on a day that is less than 5 days before the last day of the applicable Payment Term, the Late Fee Start Date shall be the 5th day after the end of the Payment Term.

"Payment Term" has the meaning given to it in Clause 2.1 (*Payment Terms*) of the Framework Agreement.

"Permits" means any authorisation, consent, approval, license, ruling, permit (including any export or import permit), tariff, rate, certification, exemption, filing, variance, claim, order, judgment, decree, publication, notice to, declaration of or with, or registration by or with, any governmental authority.

"Person" means any natural person, sole proprietorship, business trust, firm, joint venture, partnership, unincorporated organisation, association, enterprise, limited liability company, limited liability partnership, public benefit corporation, trust or other legal entity or organisation, or any government (whether central, federal, state, county, city, municipal or otherwise).

"Platform" means the online systems provided by MODIFI and made available to Seller to facilitate the purchase of Accounts Receivable hereunder.

"Political Risk" means any of the following:

- (a) the non-payment of all or part of an undisputed Transferred Account Receivable owed at any time by a Buyer which is a Foreign Public Buyer to the Seller on the expiry of 30 days;
- (b) the unjustified and formal refusal by a Buyer which is a Foreign Public Buyer to accept goods from the Seller with respect to a Transferred Account Receivable;



(c) the direct prevention of the payment of an Account Receivable to the Seller or MODIFI by a Buyer or performance of the sale and/or services contract by the Seller as a result of any of the following events:

- (i) the occurrence in the country in which the Buyer is located of war (whether declared or not), invasion, act of foreign enemy hostilities, civil war, insurrection, rebellion, riot, revolution and/or military or usurped power;
- (ii) political events, economic difficulties, currency shortages, devaluations or fluctuations, or legislative or administrative measures in the Buyer's country which prevent or delay the transfer of amounts by the Buyer;
- (iii) a general moratorium, decreed by the government of the Buyer's country or of any country through which payment must be effected or other transfer restrictions where there is a decree by the government of the Buyer's country imposing restrictions on currency transfer;
- (iv) cyclone, flood, earthquake, volcanic eruption or tidal wave or other forms of natural disaster or force majeure;
- (v) the passing of a decree by the government in the country in which the Buyer is located, exonerating him from paying the additional sum due if there is a difference between the amount deposited in the local currency on the date of the deposit or on the date of completion of the transfer formalities, and the amount due to be paid;
- (vi) inconvertibility of the currency of the Buyer's country where the debt is payable in a currency other than the currency of the Buyer's country;
- (vii) the passing of a decree by the government in the country in which the Buyer is located preventing the Buyer paying for receivables assigned to a third party; or
- (viii) the introduction of import or export restrictions or the cancellation of import or export licenses or other governmental measures which prevent performance of the contract.

"Portfolio" means a portfolio of Accounts Receivable purchased by MODIFI from the Seller and identified by MODIFI in its discretion as forming part of the relevant Portfolio.

"Post" or **"Posted"** means the point in time at which, on provision of an input to the Platform by Seller, a Buyer or MODIFI, the initial processing of such input by the Platform is complete. Reference in this Agreement to a Seller, a Buyer or MODIFI **"Posting"** information, a notice, or an assurance includes the action of the Platform to initially process such data. The input of an Invoice will be considered Posted when the Invoice is received by the Platform and initial processing of such Invoice is completed, such that the Invoice is available to be viewed by Seller and MODIFI on the Platform.

"Processing Fee" means for each Processing related to an Account Receivable in

EUR 50.00

USD 60.00

GBP 50.00

CAD 60.00

or such other amount as will be displayed on the Platform in respect of Processing of Accounts Receivable in other currencies, and which shall be deducted from the Initial Purchase Price and the Deferred Purchase Price. The Processing Fee may be increased with

EUR 20.00

USD 25.00

GBP 20.00

CAD 0.00

or Indian Sellers selecting the option "Do not convert to INR" on the MODIFI Platform.

"Processing" means MODIFI processing an Initial Purchase Price and/or Deferred Purchase Price for payment to the Seller in accordance with Clause 4.

"Purchase Price" means with respect to an Account Receivable the sum of the Initial Purchase Price and the Deferred Purchase Price.

"Reference Rate" has the meaning given to it in Clause 2.6 (Reference Rate) of the Framework Agreement. The



Reference Rate will not be adjusted and the Purchase Price will not be increased where the applicable Account Receivable is paid prior to the end of the Payment Term.

"Related Rights" means, with respect to any Account Receivable, all of the Seller's right, title and interest in, to and under:

- (a) all security interests, hypothecs, reservations of ownership, Security Interests, sureties or other Adverse Claims and property subject thereto from time to time purporting to secure payment of such Account Receivable, whether pursuant to the contract related to such Account Receivable or otherwise, together with all financing statements, registrations, hypothecs, charges or other similar filings or instruments against an Buyer and all security agreements creating any collateral securing such Account Receivable;
- (b) all guarantees, letters of credit, insurance and other agreements or arrangements of whatever character from time to time supporting or securing payment of such Account Receivable whether pursuant to the contract related to such Account Receivable or otherwise;
- (c) all bills of exchange, promissory notes, purchase orders, invoices (including interim invoices) and delivery records, relating to such Account Receivable, the applicable contract and the related Buyer;
- (d) all contracts or other agreements or documents to the extent that they evidence or secure such Account Receivable;
- (e) all unilateral rights to determine legal relationships, whether ancillary or not, in particular termination rights and the rights to draw balances, to the extent that such unilateral rights are not included in the definition of "Account Receivable"; and
- (f) all collections and proceeds of the foregoing.

"Repurchase Price" means with respect to an Account Receivable the sum of: (i) the aggregate Purchase Price already paid by MODIFI for such Account Receivable, (ii) plus the applicable Fees (each expressed as a positive number) and (iii) less any Collections received by MODIFI with respect to such Account Receivable.

"Schedule" means a schedule to this Agreement as is applicable pursuant to Clause 12.

"Security Interest" means any Security Interest, mortgage, security interest, pledge, title retention, charge, set-off right, offset, reduction, recovery, claw-back, abatement, deferral, withholding, reduction, financing statement, or other encumbrance, or other right, dispute or claim of any Person.

"Seller Account" means the bank account established, designated and maintained by Seller, details of which are set out in the Framework Agreement, or such other account as may be notified by Seller to MODIFI with 5 Business Days' notice in writing from time to time.

"Set-Up Fee" has the meaning given to it in Clause 2.5 (*Set-Up Fee*) of the Framework Agreement and which shall be deducted from one or more (at MODIFI's discretion) Purchase Price payments by MODIFI to the Seller. MODIFI is entitled to deduct a Set-Up Fee expressed in one currency from a Purchase Price expressed in another currency by converting for such purpose (the relevant part of) the Set-Up Fee into the currency of the Purchase Price at the time of such Purchase Price payment using the exchange rate obtained by MODIFI from a third party exchange rate data provider of MODIFI's choice.

"State of Default" means the situation of a Buyer resulting from the occurrence of:

- (a) an amount being overdue by the Buyer past the expiry of 30 days; or
- (b) any dishonour or non-payment of a bill of exchange, promissory note, cheque or direct debit upon its first presentation for payment, in each case, by the Buyer; or
- (c) an Event of Insolvency in relation to such Buyer; or
- (d) a Political Risk with respect to such Buyer.

"Transaction Fee" has the meaning given to it in Clause 2.2 (*Transaction Fees*) of the Framework Agreement and shall be deducted from the Initial Purchase Price. The Transaction Fee will not be adjusted and the Purchase Price will not be increased where the applicable Account Receivable is paid prior to the end of the Payment Term.

"Transfer", "Transferred" or "Transfers" means the transfer or purported transfer of Seller's entire right, title and interest in and to an Account Receivable, free and clear of any Adverse Claim; and/or when used with reference to MODIFI means that MODIFI has notified the Seller of the purchase of the Account Receivable to Seller pursuant to this Agreement.

"Underlying Relationship" means an arm's length business relationship between a Buyer and Seller.

1.2 Interpretation

In this Agreement where the context requires:

- 1.2.1 words and phrases defined in the Companies Act 2006 shall have an equivalent meaning;
- 1.2.2 reference to "this Agreement" or to any other agreement or document referred to in this Agreement means this agreement or such other agreement or document as amended, varied, supplemented, renewed, extended, modified or



novated from time to time and includes the exhibits, which shall have effect as if set out in this Agreement or such other agreement or document;

1.2.3 reference to a Clause is a reference to a clause of this Agreement;

1.2.4 Clause headings are inserted for convenience only and are not to be considered part of this Agreement or used to define, limit or construe the scope of any term or provision of this Agreement;

1.2.5 the use of singular or plural number, or masculine, feminine or neuter gender shall include all other appropriate references;

1.2.6 any phrase introduced by the words **"including"**, **"include"**, **"in particular"** or any similar expression shall be construed as illustrative only and shall not be construed as limiting the scope of any preceding words;

1.2.7 reference to any party means, unless the context otherwise requires, a party to this Agreement and includes its successors and permitted assigns;

1.2.8 reference to **"writing"** shall include typewriting, printing, facsimile, email, electronic communications made through the Platform and other modes of representing or reproducing words in a legible form;

1.2.9 reference to **"assets"** of any Person shall be construed as a reference to the whole or any part of its business, undertaking, property, assets, rights and revenues (including any right to receive revenues);

1.2.10 reference to **"consent"** includes an approval, authorisation, exemption, filing, licence, order, permission, recording or registration (and a reference to obtaining consent shall be construed accordingly); and

1.2.11 references to any statute or statutory provisions include a reference to those provisions as amended or re-enacted or as their application is modified by other provisions from time to time and any reference to a statutory provision shall include any subordinate legislation made from time to time under that provision.

1.3 Deferred Purchase with respect to Portfolios

MODIFI may determine that an Account Receivable forms part of a Portfolio to allow efficient payment of Deferred Purchase Price on a weekly or monthly basis. The Deferred Purchase Price with respect to a Portfolio shall take into account all fees and other amounts owed to MODIFI by the relevant Seller with respect to Accounts Receivable in the relevant Portfolio.

2. OFFER

2.1 Seller may on the Platform or through API provide information with regards to Accounts Receivable that it wishes to offer for sale to MODIFI, in the manner prescribed by the Platform. MODIFI will show on the Platform or through API the applicable Advance Rate and Fees for any purchase of such an Account Receivable. The aggregate of the Transaction Fee, Factoring Fee and Reference Rate shall not be less than 0.75 percent of the face value of each purchased Account Receivable per each 30 days of a Payment Term.

2.2 Seller may offer an Account Receivable for sale to MODIFI by Posting the related Invoice onto the Platform and by doing so, the Seller indicates its acceptance of the Fees and any other purchase conditions.

2.3 Once an Invoice is Posted, MODIFI may confirm either via the Platform or directly with the relevant Buyer that the relevant Invoice and any other details provided by the Seller are correct.

3. SALE AND PURCHASE OF ACCOUNTS RECEIVABLE

3.1 MODIFI may, but shall not be obliged to, accept an offer made by the Seller in accordance with Clause 2 (*Offer*) by indicating its acceptance via the Platform.

3.2 On notification of acceptance by MODIFI, Seller shall have sold and assigned absolutely all of its present and future right, title and interest in, to and under the relevant Account Receivable and all Related Rights in relation thereto to MODIFI.

3.3 On purchase of an Account Receivable MODIFI may notify the relevant Buyer of such purchase either directly or via the Platform and provide account details for payment to the Buyer and Seller authorises MODIFI to send such notification in the name of Seller.

3.4 Except for the Transfers to MODIFI hereunder, Seller shall not after acceptance by MODIFI of an offer to purchase an Account Receivable:

3.4.1 sell or assign or otherwise dispose of such Account Receivable; or

3.4.2 create any Adverse Claim or suffer to exist any Adverse Claim arising as a result of its action or inaction upon or with respect to such Account Receivable, it being understood and agreed in the case of Clause 3.4.1 and 3.4.2 that Seller is not intending thereby to have or retain any right, title or interest in or to any such Account Receivable.

3.5 If a State of Default occurs in relation to the relevant Buyer or some other material adverse event arises



in relation to the Buyer or the Seller as determined by MODIFI in its reasonable discretion, prior to MODIFI making payment of the Initial Purchase Price for an Account Receivable, then MODIFI shall be released from its obligation to pay the Initial Purchase Price to Seller and shall instead only be required to pay the Deferred Purchase Price.

3.6 For the avoidance of doubt and notwithstanding Clause 11.3, it is expressly agreed by the parties that the Seller shall not be liable for the non-payment of Invoices by a Buyer and/or Account Receivable not Collected by MODIFI from the Buyer where such non-payment arises as a result of the insolvency or other credit related inability of the Buyer to pay the relevant amount (but not where such non-payment arises as a result of any other factor including but not limited to disputes with the Seller, set-off, counterclaim, fraud or any Political Risk in respect of a Buyer).

3.7 MODIFI may require Seller to incorporate the following information into an Invoice in relation to an Account Receivable which MODIFI may purchase hereunder or otherwise give notice to the relevant Buyer of such information: the bank account information of MODIFI for receiving the amount due as well as a notice that the Account Receivable has been transferred to MODIFI and that payment must be made to MODIFI (and not to the Seller). In addition, MODIFI may require that Seller incorporate certain terms into its contracts with Buyers as a condition to purchasing Accounts Receivable arising under such contracts.

4. PAYMENT OF PURCHASE PRICE

4.1 The consideration for the Transfer of an Account Receivable is the Purchase Price.

4.2 MODIFI shall pay or procure payment of the relevant Initial Purchase Price to Seller on the IPP Payment Date, subject to any set-off in accordance with Clause 16.12.

4.3 Within 2 Business Days of the date on which an Account Receivable is Collected and clearly identified as such to the satisfaction of MODIFI or as soon as reasonably practicable thereafter if it is not reasonably practicable to make the relevant payment within 2 Business Days, subject to any set-off by MODIFI, MODIFI shall pay the applicable Deferred Purchase Price to the Seller, provided that where an Account Receivable forms part of a Portfolio MODIFI shall determine and pay the Deferred Purchase Price with respect to all Accounts Receivable in such Portfolio on a weekly or monthly basis (as determined by MODIFI in its discretion) based on the the collections Collected with respect to such Portfolio (and clearly identified as such to the satisfaction of MODIFI) in the period

ending 2 Business Days prior to the date of such payment of Deferred Purchase Price.

4.4 If any payment of the Purchase Price falls due on a day which is not a Business Day, it shall be made on the next day which is a Business Day but its amount shall not be adjusted as a consequence.

4.5 Seller shall provide to MODIFI information relating to the Seller Account and such other information as MODIFI reasonably requires to settle the payment of Purchase Price.

4.6 All payments to be made under this Agreement shall be made in the currency of the relevant Account Receivable or otherwise in the currency specified by MODIFI.

4.7 If any payments are made erroneously, including (without limitation) a payment to an incorrect payee or in an incorrect amount, Seller shall provide all commercially reasonable co-operation to MODIFI as may be necessary to correct such error as promptly as possible, including returning any incorrect payments received by it. If at any time Seller receives any payments with respect to a Transferred Account Receivable, Seller shall receive such payments in trust for the benefit of MODIFI, segregate such payments from its other funds, and deliver to MODIFI, in the same form as so received with all necessary endorsements, all such payments received as soon as practicable, but in no event later than two (2) Business Days after receipt thereof by Seller.

4.8 Seller shall be responsible for the payment of all federal, state, local, and foreign sales, use, excise, utility, gross receipts, value added, stamp duty or other tax or duty imposed by any authority related to this Agreement, Seller's use of the Platform, and receipt of the Purchase Price and any other amounts received by Seller as a result of Seller's use of the Platform, other than taxes relating to the income of MODIFI or Buyer.

5. FURTHER ASSURANCES

5.1 Seller undertakes in respect of each Account Receivable Transferred pursuant to this Agreement not to seek payment of such Account Receivable from Buyer other than to pay MODIFI.

5.2 Seller hereby irrevocably appoints MODIFI the agent of Seller to execute and deliver in Seller's name, such deeds, agreements and documents, to complete or endorse such cheques and other instruments, to institute or defend such proceedings and to perform such other acts as MODIFI may consider necessary to secure the performance of any of Seller's obligations under this Agreement, including the notification of the Buyer



in relation to the purchase of an Account Receivable.

5.3 Seller shall at the request of MODIFI execute or procure the execution of such documents and do or procure the doing of such acts and things as MODIFI may reasonably require for the purpose of giving effect to the assignment of an Account Receivable to MODIFI in accordance with the terms of this Agreement, and in the event that any such assignment is not effective, Seller shall forthwith remit any monies received to and hold any rights received in relation to such Account Receivable on trust for MODIFI until such time that an assignment can be effected.

5.4 In the event that a Buyer fails to pay MODIFI any sum due and payable by Buyer pursuant to a Transferred Account Receivable, Seller shall give to MODIFI all such information and assistance as MODIFI shall reasonably require pursuant to any debt recovery proceedings, including instructing such attorneys, counsel or other professional advisors as MODIFI may nominate to act on behalf of Seller but in accordance with MODIFI's instructions.

6. SELLER REPRESENTATIONS AND WARRANTIES

6.1 Seller represents and warrants to MODIFI on each day that:

6.1.1 the correct legal name of Seller, as it appears in Seller's memorandum, articles or certificate of incorporation, or other publicly registered organisational document, Seller's jurisdiction of incorporation or organisation, its employer identification number, tax registration number and the organisational identification number issued by the jurisdiction of formation are as provided when Seller registered to use the Platform or as subsequently notified to MODIFI in writing;

6.1.2 Seller is duly organised, validly existing and in good standing under the laws of the jurisdiction of its organisation and is duly qualified and in good standing in all relevant jurisdictions;

6.1.3 Seller has the power, authority and approvals to enter into and perform its obligations under this Agreement and all corporate, regulatory and other actions required to authorise the execution, delivery and performance of this Agreement and the performance of its obligations hereunder have been duly taken;

6.1.4 this Agreement is the legal, valid and binding obligation of Seller, enforceable against Seller in accordance with its terms; and the acceptance by Seller of an offer from MODIFI to purchase an Account Receivable will give rise to a legal, valid and binding obligation of Seller in accordance with this

Agreement with respect to the Transfer of the related Account Receivable;

6.1.5 each Account Receivable Transferred or to be Transferred hereunder:

6.1.5.1 is a legal, valid, enforceable and assignable obligation of the relevant Buyer;

6.1.5.2 is solely owned by Seller who has the right to sell, assign and transfer such Account Receivable;

6.1.5.3 is and will remain free from all Adverse Claims and all other Security Interests of any kind and is not subject to any dispute;

6.1.5.4 is an amount due under an Invoice that has been issued to the Buyer not more than 30 days after the relevant goods or services were despatched;

6.1.5.5 is an amount due under an Invoice that has been issued to the Buyer not more than 14 days prior to being Posted on the Platform by the Seller;

6.1.5.6 save in the case of an Account Receivable that has CAD as a payment term, relates to a supply of goods or services which has been fully and correctly completed and such Account Receivable is not contingent on further goods or services being supplied to the Buyer;

6.1.5.7 is originated in the ordinary course of Seller's business;

6.1.5.8 arises from an Underlying Relationship that does not violate Applicable Law;

6.1.5.9 in the case of an Account Receivable Transferred or to be Transferred hereunder that has CAD as a payment term, is an Account Receivable in respect of which (1) the conditions set out in paragraph 2 of Schedule 2 have been complied with; (2) the Documents delivered to the Seller constitute a full and correct pack of all of the Documents that need to be delivered to the Buyer when the Buyer pays the Account Receivable; (3) all necessary steps to supply the relevant goods or services to which the Account Receivable relates have been and will be fully, correctly and punctually taken; and (4) the Due Date is not contingent on the Documents being delivered;

6.1.6 in so far as Seller is aware, each Buyer in relation to which it posts an Invoice is duly organised, validly existing and in good standing under the laws of the jurisdiction of its organisation and is duly qualified and in good standing in all relevant jurisdictions;

6.1.7 in so far as Seller is aware, each Buyer in relation to which it posts an Invoice has the power to enter into and perform its obligations under the contract giving rise to the relevant Account Receivable and



	all corporate and other actions required to authorise the execution, delivery and performance of such contract and the performance of its obligations thereunder have been duly taken;		the user ID and password which gives Seller access to the Platform; and
6.1.8	no Buyer nor any affiliate or group company of any Buyer in relation to which Seller posts an Invoice is subject to a State of Default with Seller at the time the Invoice is posted and each such Buyer, affiliate or group company has no debts outstanding to the Seller that are more than 30 days overdue;	6.1.17	it shall comply with all Applicable Law relative to the conduct of its obligations under this Agreement and its use of the Platform.
6.1.9	no Buyer is an affiliate of the Seller during the term of this Agreement and so long as any Account Receivable owed by such Buyer purchased by MODIFI remains outstanding;	6.2	No representations or warranties, whether express or implied, including the implied warranties of merchantability and fitness for a particular purpose, are made by MODIFI with respect to the Platform.
6.1.10	information Posted to the Platform that is purported to be Posted by Seller is accurate and complete;	6.3	If Seller breaches any representation or warranty contained in this Agreement, MODIFI may demand that Seller repurchase the affected Transferred Accounts Receivable for the aggregate amount of the Repurchase Price with respect thereto and Seller shall repurchase such Transferred Accounts Receivable within 3 Business Days of such demand. The repurchase requirement contained in this Clause 6.3 is without prejudice to any other rights of MODIFI.
6.1.11	each Person who purports to make an entry in the Platform on behalf of Seller has been duly authorised by Seller and each entry on the Platform purporting to be by Seller is duly authorised and is binding on Seller;	7.	SELLER COVENANTS
6.1.12	all information provided by or on behalf of Seller to MODIFI was and is true and correct in all material respects and was and is not incomplete by omitting to state any material fact necessary to make such information not misleading in any material respect in light of the circumstances under which such information was provided;	7.1	Seller shall maintain comprehensive records of all transactions entered into by it using the Platform and otherwise with respect to its obligations and activities in connection with this Agreement, including (without limitation) information with respect to each Underlying Relationship (or associated disputes) to which it is a party (including contracts and amendments, variations or waivers to such contracts), and with respect to compliance of such transactions with applicable laws and regulations (Records). Seller shall retain each Record required to be maintained under this Clause 7 until the later of: (i) the date falling one year after this Agreement is terminated and (ii) such later date as may be required by law or regulation.
6.1.13	neither the Seller nor, so far as it is aware, any Buyer or affiliate or group company of any Buyer in relation to which it posts an Invoice is subject to any litigation or investigation which has not been disclosed to MODIFI and would materially prejudice MODIFI's position;	7.2	Seller shall provide MODIFI with copies of any Records as MODIFI may require in order to enforce its rights under Accounts Receivable which it has purchased and/or to comply with an order, instruction or request from any authority of competent jurisdiction, or to ensure compliance with or in connection with the performance of the terms of this Agreement and/or to obtain, maintain or claim under any relevant insurance policy.
6.1.14	neither the Seller nor, so far as it is aware, any Buyer or affiliate or group company of any Buyer in relation to which it posts an Invoice is involved in any corrupt practice, breach of sanctions or activity which violates Applicable Law in any relevant jurisdiction;	7.2.1	Seller shall provide to MODIFI or procure that MODIFI is able to source independently the following documents relating to Buyers in respect of which Seller has posted an Invoice:
6.1.15	the goods and/or services purchased by a Buyer which give rise to each Account Receivable do not include arms, weapons, weapon components or military equipment or any goods or services the supply or receipt of which is contrary to Applicable Law;	7.2.2	any and all contracts (including variations, amendments and waivers relating thereto) with such Buyers;
6.1.16	the goods and/or services purchased by a Buyer which give rise to each Account Receivable Transferred or to be Transferred hereunder are supplied from the jurisdiction described in the address of Seller that is stored in connection with	7.2.3	details of any disputes with such Buyers;



- 7.2.4 a statement of all outstanding Invoices issued by the Seller to that Buyer (whether or not offered to MODIFI); and
- 7.2.5 any other documents reasonably requested by MODIFI.
- 7.3 Seller shall provide to MODIFI as soon as they are available and via the Platform:
- 7.3.1 (i) at the latest within six months after the last day of its financial year, its audited annual financial statements, provided that if its annual financial statements are not required to be audited under Applicable Law, its unaudited annual financial statements prepared by an independent professional adviser shall be provided to MODIFI and (ii) any other audited and unaudited published financial statements, at the latest within six months after the last day of the relevant reporting period;
- 7.3.2 at the latest within 45 days after the date of closure of each quarterly period of each of its financial years (such date, the **Quarterly Reporting Date**), quarterly financial updates containing such financial information in respect of the Seller as may be required by MODIFI, including at a minimum (i) a profit and loss statement of the Seller with a monthly breakdown of the financial year to the Quarterly Reporting Date, (ii) a balance sheet and ledger accounts per the Quarterly Reporting Date and (iii) an overview of each of the Seller's three most significant bank accounts (in respect of value of transactions and amounts standing to the credit or debit of such accounts) per the Quarterly Reporting Date, in the form of a PDF copy of an extract from an online banking portal, reflecting at a minimum names of payers and payees, transaction dates, transactions amounts, payment purposes and amounts standing to the credit or debit of such accounts per the first date of the relevant quarter and the Quarterly Reporting Date (if supported by the relevant banking system);
- 7.3.3 its constitutional documents including any resolutions and/or amendments relating thereto;
- 7.3.4 details of any insolvency proceedings, litigation or regulatory investigation to which it is subject to the extent these can be disclosed without violating Applicable Law;
- 7.3.5 in relation to any Buyer from whom MODIFI is owed money for outstanding Accounts Receivable purchased from the Seller and in relation to any Buyer that owes money for Accounts Receivable offered hereunder, the details of any disputes with and details of any known State of Default of such Buyer; and
- 7.3.6 details of any credit notes, set-off or rebates which are or may be applied by any Buyer in relation to

Accounts Receivable (including trading on contra, volume sale discounts etc.) or other circumstance which may lead to a Buyer being entitled to pay less than the full amount of an Invoice (e.g. goods sold on consignment), in each case where the Seller has sold or has offered for sale to MODIFI an Account Receivable owed by such Buyer which is outstanding.

- 7.4 Seller shall not directly or indirectly waive or vary the terms of any Account Receivable which it has sold to MODIFI.
- 7.5 Seller shall assist MODIFI and any agent appointed by MODIFI to identify amounts received in relation to Accounts Receivable which it has sold to MODIFI.
- 7.6 Seller shall not sell further goods or services to a Buyer for so long as that Buyer or any affiliate or group company of that Buyer is in a State of Default with respect to Accounts Receivable which have been Transferred to MODIFI.

8. NO ASSUMPTION OF SUPPLIER LIABILITIES

Notwithstanding anything in this Agreement to the contrary, MODIFI does not assume and will not be deemed to assume any obligations, undertakings, liabilities or responsibilities of Seller to a Buyer or any other Person, all of which shall remain with Seller.

9. CONDUCTING BUSINESS THROUGH THE PLATFORM

The parties consent to the communication and delivery of elections and other communications and the creation of binding contracts, including variations of this Agreement, through the Platform, even though such actions are by electronic means rather than in writing on paper. The parties agree that such actions shall be valid and binding obligations of the parties, as if such actions had been taken in writing on paper. Each party hereby waives any claim or defence that the elections, contracts and other communications are not binding or enforceable or do not have their intended effect as a result of their being communicated electronically rather than in writing on paper.

10. SURVIVAL

Notwithstanding anything contained in this Agreement to the contrary, Seller expressly agrees that Seller's obligations to MODIFI under this Agreement shall survive and remain in full force and effect notwithstanding the termination or expiration of this Agreement, any default under this Agreement (other than the uncured failure of MODIFI to deposit the applicable Purchase Price), or



any failure of the Platform for any reason whatsoever.

11. INDEMNITIES

11.1 Seller shall defend and indemnify MODIFI and its affiliates together with their respective successors and permitted assigns, and all officers, directors, shareholders, controlling Persons, Employees, agents and representatives of any of the foregoing (the **MODIFI Indemnified Parties**) on demand against any losses, claims, liabilities, damages, costs and expenses (including reasonable attorney's fees) awarded against or incurred by them arising out of:

11.1.1 any breach of this Agreement by the Seller (including breaches of representation or warranty and any costs incurred in Transferring repurchased Accounts Receivable to Seller) and any provision of this Agreement being unenforceable against Seller or failing to comply or conform with or resulting in penalties under any Applicable Law (including the applicable usury laws of any jurisdiction);

11.1.2 the payment of any tax related to this Agreement, in relation to any Transferred Account Receivable, arising in relation to or in respect of any Fees in the jurisdiction in which Seller is located, established or resident, the provision of goods and services by Seller to a Buyer, use of the Platform, or amounts received by Seller as a result of Seller's use of the Platform, imposed by any authority, other than taxes relating to the corporate profits of MODIFI; or

11.1.3 any disputes that arise in relation to any Accounts Receivable or this Agreement, including:

11.1.3.1 disputes in relation to:

(a) any failure by Buyer to pay Seller amounts owed or vice versa; or

(b) any Adverse Claims;

11.1.4 the inaccuracy of any information submitted into the Platform by the Seller, including any inaccuracy with respect to the Due Date, the value or currency of any Invoice; or

11.1.5 use of the Platform by Seller; or

11.1.6 any claim by Seller against the licensor of the Platform, other than claims finally determined to arise from breach by such licensor of its agreement with MODIFI or such licensor's gross negligence or wilful misconduct;

11.1.7 any reduction to the amount due with respect to an Account Receivable which has been Transferred to MODIFI including where the relevant goods are returned or the applicable Buyer has a counterclaim;

11.1.8 any claim by a third party against the licensor of the Platform due to the actions or omissions of Seller in breach of this Agreement; or

11.1.9 any Political Risk materialising in respect of a Buyer.

11.2 Any amount due but unpaid by Seller to MODIFI under this Agreement shall accrue interest at the rate of 4 percent per annum on top of the sum of the annualised Transaction Fee rate and the Reference Rate applied to the last Account Receivable sold by the Seller to MODIFI (the applicable rate, the **Default Rate**) with such interest being payable on demand until all amounts owing hereunder are paid in full.

11.3 Regardless of the reason for any late payment by the Buyer, where a purchased Account Receivable is Collected after the Late Fee Start Date, the Seller shall pay to MODIFI an additional servicing fee (the **Late Fee**) of 1.5 percent per month of the Advance Rate Amount with respect to such Account Receivable accruing from and excluding the Late Fee Start Date until the actual date of collection by MODIFI and compounding daily but capped at the amount of Deferred Purchase Price with respect to such Account Receivable.

12. SCHEDULES

The Schedules annexed to this Agreement are applicable and form part of this Agreement as set out below:

Schedule 1 contains the details of the primary contact person of the Seller and bank account details of the Seller.

Schedule 2 contains the terms of the Cash-Against-Documents services. Terms used in this Agreement and defined in Schedule 2 have the meanings given to them in Schedule 2.

13. CONFIDENTIALITY

13.1 Subject to the provisions of Clauses 13.2, 13.3 and 13.4, each party shall:

13.1.1 treat as strictly confidential and use solely for the purposes contemplated by this Agreement all information, whether technical or commercial, obtained or received by it as a result of entering into or performing its obligations under this Agreement and relating to the negotiations relating to, or the provisions or subject matter of, this Agreement or any other party to it (**confidential information**);

13.1.2 not, except with the prior written consent of the party from whom the confidential information was obtained publish or otherwise disclose to any person any confidential information except for the purposes contemplated by this Agreement; and



13.1.3 take reasonable precautions necessary to safeguard the confidentiality of the disclosing party's confidential information, including:

- (a) those taken by the receiving party to protect its own confidential information; and
- (b) those which the disclosing party may reasonably request from time to time.

13.2 The receiving party may disclose confidential information which would otherwise be subject to Clause 13.1 but only to the extent that it can demonstrate that:

13.2.1 such disclosure is required by Applicable Law or by any securities exchange or regulatory or governmental body having jurisdiction over it, wherever situated, and whether or not the requirement has the force of law;

13.2.2 the confidential information was lawfully in its possession prior to its disclosure by the other party (as evidenced by written records) and had not been obtained from the disclosing party; and

13.2.3 the confidential information has come into the public domain other than through its fault or the fault of any person to whom the confidential information has been disclosed in accordance with Clause 13.3;

13.3 Each party may for the purposes contemplated by this Agreement disclose confidential information to the following Persons or any of them, provided that a written confidentiality undertaking in a form equivalent to Clause 13.1 has been obtained from such Person, or an equivalent professional obligation is owed by such Person:

13.3.1 its professional advisers, auditors, bankers and insurers, acting as such;

13.3.2 actual and potential investors in and providers of funding to MODIFI and any related security agent, trustee or service provider; and

13.3.3 its and its affiliates' directors, officers, employees and agents.

13.4 This Clause 13 shall not prohibit communication between MODIFI and a Buyer.

13.5 The parties acknowledge that any unauthorised use or disclosure of any Confidential Information by the receiving party may cause irreparable damage to the disclosing party and that the disclosing party will be entitled to seek injunctive relief or other equitable or legal relief to prevent or compensate for such unauthorised use or disclosure.

13.6 Notwithstanding any other provision of this Agreement, MODIFI and its agents will not be liable to the Seller in relation to any unauthorised access or theft of data.

13.7 Seller acknowledges that MODIFI will have access to data in relation to Seller from the Platform including historical data.

14. TERMINATION

14.1 This Agreement shall become effective on the date it has been signed by both parties and shall continue in force until terminated in accordance with Clauses 14.2 or 14.3.

14.2 MODIFI may terminate this Agreement with immediate effect by giving written notice to Seller if:

14.2.1 the Seller commits a material breach of any of the terms and conditions of this Agreement which is incapable of remedy, or if capable of remedy is not remedied within 30 days of service of notice by MODIFI requiring such remedy; or

14.2.2 any warranty or undertaking given by Seller in this Agreement is found to be untrue or misleading; or

14.2.3 an Event of Insolvency occurs with respect to the Seller.

14.3 Either party may terminate this Agreement on each anniversary of the date on which it comes into effect by giving not less than three calendar months' prior written notice to the other party.

14.4 The Seller shall notify MODIFI promptly upon the occurrence of an event or circumstance referred to in Clause 14.2.

14.5 Upon termination of this Agreement for whatever reason:

14.5.1 the rights and obligations of the parties under this Agreement shall terminate and be of no further effect, except that Clauses 1, 5, 6, 7, 8, 9, 10, 11, 14, 16 and 17 shall remain in full force and effect; and

14.5.2 any rights or obligations to which either of the parties to this Agreement may be entitled or be subject before such termination shall remain in full force and effect.

14.6 Termination shall not affect or prejudice any right to damages or other remedy which the terminating party may have in respect of the termination events mentioned in Clause 14.2 which gave rise to the termination or any other right of damages or other remedy which any party may have in respect of any breach of this Agreement.

15. NOTICES



- 15.1 Any notice (which term shall in this Clause 15 include any communication) required to be given under or in connection with this Agreement shall, except where otherwise provided, be in writing, in the English language and sent to the relevant party at the address communicated via the Platform.
- 15.2 Any party to this Agreement may notify the other party of any change to this address or other details by 5 Business Days written notice via the Platform.
- 15.3 All notices which can be delivered via the Platform, must be delivered via the Platform.
- 15.4 In addition, any notice to be delivered under Clause 15 (excluding, for the avoidance of doubt, the notices referenced in Clause 15.5 below) may be:
- 15.4.1 personally delivered, in which case it shall be deemed to have been given upon delivery at the relevant address if it is delivered not later than 5:00 p.m. on a Business Day, or, if it is delivered later than 5:00 p.m. on a Business Day or at any time on a day which is not a Business Day, at 8:00 a.m. on the next Business Day;
- 15.4.2 if within the same country as the recipient, sent by first class pre-paid post, in which case it shall be deemed to have been given two Business Days after the date of posting; or
- 15.4.3 if from or to any place outside the country of the recipient, sent by pre-paid airmail, or by air courier in which case it shall be deemed to have been given seven Business Days after the date of posting in the case of airmail or two Business Days after delivery to the courier, in the case of air courier;
- 15.4.4 sent by electronic mail, in which case it shall be deemed to be given when actually received in readable form, provided that any notice sent by electronic mail after 5:00 p.m. on any Business Day or at any time on a day which is not a Business Day shall be deemed to have been given at 8:00 a.m. on the next Business Day.
- 15.5 This Clause 15 does not apply to notices which are enabled through the Platform during the ordinary course of Posting Invoices, Transfers, and other normal operations of the Platform.
- 16. GENERAL**
- 16.1 This Agreement constitutes the entire statement of all terms and representations of the agreement between MODIFI and Seller with respect to its subject matter and supersedes and extinguishes all prior drafts, undertakings and representations whether oral or in writing or understandings.
- 16.2 Each party acknowledges that (a) it is capable of evaluating the merits and risks (including tax, accounting, regulatory, legal and financial matters) of entering into this Agreement, and that it is entering into this Agreement in reliance upon such tax, accounting, regulatory, legal and financial advice as it deems necessary to obtain from its own advisors and not from the other party hereto; (b) that it is not relying upon oral or other representations, warranties or statements not expressly set forth in this Agreement and (c) it agrees that it shall have no remedy in respect of any other representation or warranty not expressly set forth in this Agreement except in the case of fraud.
- 16.3 Any waiver or variation of this Agreement will not be effective unless executed in writing by both parties or, in the case of any waiver, executed in writing by the party waiving the benefit of any provision.
- 16.4 MODIFI may transfer or sell its interest under this Agreement and/or in any Account Receivable to any Person. MODIFI may use subcontractors or other third parties to perform its obligations under this Agreement, provided that MODIFI shall remain primarily liable for the performance of all of its obligations under this Agreement by such subcontractors or third parties.
- 16.5 Seller shall not assign any of its rights, title and interest in or to, or its obligations or liabilities hereunder without the prior express written consent of MODIFI.
- 16.6 If any provision of this Agreement shall be held to be illegal, void, invalid or unenforceable under the laws of any jurisdiction, the legality, validity and enforceability of the remainder of this Agreement in that jurisdiction shall not be affected, and the legality, validity and enforceability of the whole of this Agreement in any other jurisdiction shall not be affected.
- 16.7 Subject to any express provisions to the contrary in this Agreement:
- 16.7.1.1 nothing contained herein shall be deemed to create a relationship of agency, joint venture or partnership or a fiduciary relationship; and
- 16.7.1.2 the parties shall have no right or authority to and shall not do any act, enter into any contract, make any representation, give any warranty, incur any liability, assume any obligation, whether express or implied, of any kind on behalf of or bind the other party in any way.
- 16.8 The rights, powers, privileges and remedies provided in this Agreement are cumulative and are not exclusive of any rights, powers, privileges or remedies provided by law or otherwise.
- 16.9 No failure to exercise nor any delay in exercising by any party to this Agreement of any right, power,



privilege or remedy under this Agreement shall impair or operate as a waiver thereof in whole or in part. No single or partial exercise of any right, power privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, powers, privilege or remedy.

16.10 Subject to any express provisions to the contrary each party to this Agreement shall pay its own costs of and incidental to the negotiation, preparation, execution and carrying into effect of this Agreement.

16.11 This Agreement may be executed in two or more counterparts, which together shall constitute one Agreement.

16.12 MODIFI may set off any matured obligation due to it by the Seller against any matured obligation owed by MODIFI to the Seller, regardless of the place of payment, booking branch or currency of either obligation. If the obligations are in different currencies, MODIFI may convert either obligation at a market rate of exchange in its usual course of business for the purpose of the set-off. The Seller shall not be entitled to exercise any set-off of amounts owed by it to MODIFI.

16.13 No recourse under any obligation, covenant, or agreement of MODIFI (acting in any capacity whatsoever) contained in this Agreement shall be had against any shareholder, officer, director, employee or agent of MODIFI as such, by the enforcement of any assessment or by any proceeding, by virtue of any statute or otherwise, it being expressly agreed and understood that each of its obligations hereunder is a corporate obligation of the relevant party and no personal liability shall attach to or be incurred by the shareholders, officers, agents, employees or directors of MODIFI as such, or any of them, under or by reason of any of the obligations, covenants or agreements contained in this instrument, or implied therefore, and that any and all personal liability for breaches by MODIFI of any such obligations, covenants or agreements, either at law or by statute or constitution, of every such shareholder, officer, agent, employee or director is hereby expressly waived by the other parties as a condition of and consideration for the execution of this Agreement.

16.14 The Seller hereby undertakes to MODIFI that it shall not, nor shall any party on its behalf, at any time institute against, or join any person in instituting against MODIFI or any or all of the revenues and assets of MODIFI any bankruptcy, winding up, reorganisation, examinership, arrangement, insolvency or liquidation dissolution proceeding or other proceeding under any similar law nor petition for the appointment of a receiver, administrator, examiner, administrative receiver, trustee, liquidator,

sequestrator or similar officer of it nor participate in any ex parte proceedings.

16.15 No person which is not a party hereto shall have any rights under the Contracts (Rights of Third Parties) Act 1999 in relation to this Agreement.

17. GOVERNING LAW

17.1 **Governing law:** This Agreement and any non-contractual obligations arising out of or pursuant to it shall be governed by English law.

17.2 **Jurisdiction:** Where the Seller is formed, incorporated or residing in any country other than the People's Republic of China, each party irrevocably submits to the exclusive jurisdiction of the English courts.

17.3 CN Arbitration Clause:

17.3.1 Where the Seller is formed, incorporated or residing in the People's Republic of China, any dispute arising out of or in connection with this Agreement or over its validity shall be resolved through friendly consultation. If no agreement can be reached within 60 (sixty) days after the dispute has arisen, the dispute shall, to the exclusion of the ordinary courts of law, only be submitted for arbitration to London Court of International Arbitration ("LCIA"), and shall be decided according to the arbitration rules of LCIA effective on the date of submitting the request for arbitration. The place of arbitration shall be London, United Kingdom. All arbitration proceedings shall be conducted in the English language.

17.3.2 The arbitration tribunal shall consist of 1 (one) arbitrator, appointed by the LCIA.

17.3.3 The arbitral award shall be final and binding on both Parties. The arbitration fee and the winning Party's reasonable expenses, including lawyers' fees, shall be borne by the losing Party except awarded otherwise by the arbitration tribunal. Petition for enforcement of the arbitral award may be filed with any court having jurisdiction thereof.

17.3.4 During the arbitration proceedings, the Parties shall continue to perform this Agreement except for the provisions which are under dispute.



SCHEDULE 1

Contact and bank account details

1. Introduction

This Schedule is supplemental to the Agreement. Definitions used in this Schedule shall have the meaning given to them in the Agreement. This Schedule sets out certain important details, namely the contact persons of the Seller and the Seller’s Bank Account details. The details set out in this Schedule can only be amended in writing in such form as is required by MODIFI from time to time.

2. Primary contact person at SELLER

The primary contact person(s) in this Schedule will be granted access to the Platform and will be allowed to take binding actions on the Platform on behalf of the Seller (please refer to Clause 9 of the RPTC). In addition, the primary contact person(s) may appoint other persons to be granted access to the Platform and to take binding actions on the Platform on behalf of the Seller. The Seller hereby confirms that such actions by such persons shall create binding obligations of the Seller (please refer to Clause 9 of the RPTC).

First name	Last name	(Company) Email address	Telephone number
Naresh	Aneja	naresh@lajexports.com	00919811013606

3. Bank Account Details of Seller

The below Bank Account details will be used by MODIFI for payments under the Agreement. MODIFI accepts only one bank account per accepted currency (currently EUR, USD and GBP).

By signing this Schedule, the Seller confirms that he has checked the details underneath and that these details are correct:

Currency	Account Holder Name	Account Number	Swift Code
EUR	LAJ EXPORTS LIMITED	001484600002512	YESBINBB
USD	LAJ EXPORTS LIMITED	001484600002512	YESBINBB
GBP	LAJ EXPORTS LIMITED	001484600002512	YESBINBB

SELLER

Place:

Date:

DocuSigned by:

NARESH ANEJA

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NEW DELHI

18 July 2024



SCHEDULE 2 Cash-Against-Documents services

1. Introduction

This Schedule is supplemental to the Agreement. Definitions used in this Schedule shall have the meaning given to them in the Agreement.

2. Cash-Against-Documents Services

Upon request of a Seller and subject to MODIFI's consent (at MODIFI's sole discretion), MODIFI may purchase Accounts Receivable under the Agreement that have 'CAD' or 'Cash-Against-Documents' (hereafter: "**CAD**") as payment term. This means that the Buyer must pay the relevant Account Receivable in order to receive the commercial documents ("**Documents**"), including for example invoices, purchase orders, transport documents (such as Bill of Lading or Airway Bill), documents of title or other similar documents. MODIFI shall purchase such Accounts Receivable on the following conditions:

- a. the Seller has informed the Buyer and agreed with the Buyer that MODIFI (or an agent on MODIFI's behalf) shall hold the Documents in custody until such time that the Buyer pays the Account Receivable in and any other amounts payable from the Buyer to MODIFI in full (without deduction or set-off) (the "**CAD Services**");
- b. on or before the IPP Payment Date, the Documents have been placed in the custody of MODIFI or any agent appointed by MODIFI, accompanied by a complete list of the Documents and (where applicable) the numerical count of each Document;
- c. the Seller gives clear and unambiguous instructions with regard to the release of the Documents (including the identity of the Buyer, its representatives or the address for receiving the Documents, etc.). MODIFI shall disregard any instructions from the Buyer unless specifically instructed by the Seller to adhere to such instructions;
- d. without prejudice to any Due Date requirements in the Agreement, the Due Date for payment by the Buyer shall be no later than the date of discharge of goods at the destination port;
- e. Documents are to be presented to the Buyer in the form in which they have been received from the Seller.

3. Fees for Cash-Against-Documents-Services

In consideration for the CAD Services, MODIFI may increase the Processing Fee with EUR 20.00 / USD 25.00 / GBP 20.00 or CAD 30.00 or such other amount as will be displayed on the Platform.

4. Indemnification

The Seller shall defend, indemnify and hold harmless all MODIFI Indemnified Parties on demand against any losses, claims, liabilities, damages, costs and expenses (including reasonable attorney's fees) awarded against or incurred by them arising out of the CAD Services or any disputes with Buyers or any third parties (including shipping companies, ports, etc.) related to or resulting from the CAD Services.

5. Limitation of Liability / No Assumption of Responsibilities:

To the maximum extent permitted by applicable law, in no event shall MODIFI be liable for any damages (including any special, incidental, indirect or consequential damages) arising out of or in connection with the CAD Services (including due to negligence or otherwise), even if MODIFI has been advised of the possibility of such damages, except in case of MODIFI's gross negligence or wilful misconduct. The provision of the CAD Services under no circumstances means that MODIFI has taken any responsibility or has assumed any obligations, undertakings, liabilities or responsibilities of the Seller or Buyer arising from their Underlying Relationship, including with respect to the Documents or any goods to which the Documents relate, including storage, insurance, or taking delivery of goods. MODIFI does not have any responsibility vis-à-vis third parties such as shipping companies, port authorities, insurers, etc. Such responsibility lies solely with the Seller or the Buyer, as the case may be. MODIFI assumes no liability or responsibility for the form, sufficiency, accuracy, genuineness, falsification or legal effect of any Documents, or for the general and/or particular conditions stipulated in the Documents or superimposed thereon; nor does MODIFI assume any liability or responsibility for the description, quantity, weight, quality, condition, packing, delivery, value or existence of the goods represented by any Documents, or for the good faith or acts and/or omissions, solvency, performance or standing of any third parties. MODIFI assumes no liability or responsibility for the consequences arising out of delay and/or loss in transit of any message(s), letter(s) or Documents. MODIFI will not be liable or responsible for any delays resulting from the need to obtain clarification of any instructions received. MODIFI assumes no liability or responsibility for consequences arising out of the interruption of their business by Acts of God,



riots, civil commotions, pandemics, insurrections, wars, or any other causes beyond their control or by strikes or lockouts.

6. Withholding of Documents

Where MODIFI is entitled to any amounts payable by the Seller, and provided the Buyer has not paid MODIFI and has become entitled to receive the Documents, MODIFI may hold the Documents under its custody until such time that the Seller has paid any outstanding amounts to MODIFI in full.